

**VETO
OVERRIDDEN**

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 10-09
Chickasaw Nation Business Reform Act**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Chickasaw Construction Company, Inc. began operating as a tribal entity pursuant to receiving a \$100,000 loan from the Chickasaw Nation approved by Resolution 1-33 (84-33), in 1984, and several resolutions have since been approved regarding Chickasaw Construction Company, Inc., and it has been the understanding of the Chickasaw Tribal Legislature that Chickasaw Construction Company, Inc. is no longer operating as a tribal entity, and there has been no resolution deactivating Chickasaw Construction Company, Inc.

WHEREAS, the Chickasaw Tribal Legislature has learned that Chickasaw Nation Builders is currently functioning in lieu of Chickasaw Construction Company, Inc. and is being funded by Central Business Services without the knowledge, authorization, or approval of the Legislature, and

WHEREAS, the Legislature sees the dangerous implications of this process.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature does hereby deactivate Chickasaw Construction Company, Inc. as a tribal entity and does hereby declare Chickasaw Nation Builders to be an unauthorized tribal entity for which no funds have been appropriated and is, therefore, in violation of Article VII Section 9 of the Constitution of the Chickasaw Nation which addresses the budgetary process.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature does hereby repeal any resolution that may be considered still to be in effect authorizing and/or approving any loan, any line of credit, any letter of credit or any guarantee of any letter of credit, or any use of any Tribal Funds, or any reactivation or recognition of the Chickasaw Construction Company, Inc. as a

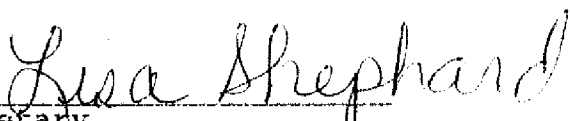
tribal entity.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature does not recognize as being legal any tribal entities or enterprises or businesses or subsidiaries of any tribal entities, by any name, that have not been authorized and approved by the Legislature and that are not accurately reported in the monthly financial statement given to the Tribal Legislature.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature recognizes Tribal Funds as being those funds which include, but are not limited to, funds that are earned by any tribal entities or enterprises or businesses or subsidiaries of any tribal entities or funds earned by any means. The Legislature does not recognize as being legal any expenditure of said Tribal Funds which does not conform to Article VII Section 9 of the Constitution of the Chickasaw Nation, which addresses the budgetary process.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, February 19, 1993, by a vote of 12 ayes, 0 nays, and 1 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concurs:

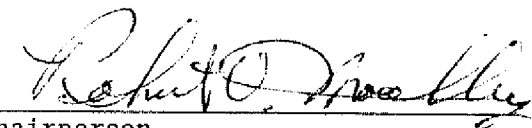

for Bill Anoatubby, Governor
The Chickasaw Nation

Date: 2-26-93

VETOED

**VETO
OVERRIDDEN**

Gubernatorial veto overridden in special session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on March 2, 1993, by a vote of 9 ayes, 3 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

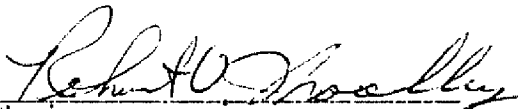
Permanent Resolution 10-09 - continued

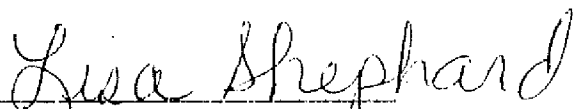
tribal entity.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature does not recognize as being legal any tribal entities or enterprises or businesses or subsidiaries of any tribal entities, by any name, that have not been authorized and approved by the Legislature and that are not accurately reported in the monthly financial statement given to the Tribal Legislature.

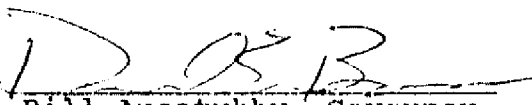
BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature recognizes Tribal Funds as being those funds which include, but are not limited to, funds that are earned by any tribal entities or enterprises or businesses or subsidiaries of any tribal entities or funds earned by any means. The Legislature does not recognize as being legal any expenditure of said Tribal Funds which does not conform to Article VII Section 9 of the Constitution of the Chickasaw Nation, which addresses the budgetary process.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, February 19, 1993, by a vote of 12 ayes, 0 nays, and 1 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concurred:


for Bill Anoatubby, Governor
The Chickasaw Nation

Date: 2-26-93

VETOED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 10-09 Chickasaw Nation Business Reform Act

Explanation: The Chickasaw Tribal Legislature does hereby deactivate Chickasaw Construction Company, Inc. as a tribal entity and does hereby declare Chickasaw Nation Builders to be an unauthorized tribal entity for which no funds have been appropriated and is, therefore, in violation of Article VII Section 9 of the Constitution of the Chickasaw Nation which addresses the budgetary process.

The Chickasaw Tribal Legislature does hereby repeal any resolution that may be considered still to be in effect authorizing and/or approving any loan, any line of credit, any letter of credit or any guarantee of any letter of credit, or any use of any Tribal Funds, or any reactivation or recognition of the Chickasaw Construction Company, Inc. as a tribal entity.

The Chickasaw Tribal Legislature does not recognize as being legal any tribal entities or enterprises or businesses or subsidiaries of any tribal entities, by any name, that have not been authorized and approved by the Legislature and that are not accurately reported in the monthly financial statement given to the Tribal Legislature.

The Chickasaw Tribal Legislature recognizes Tribal Funds as being those funds which include, but are not limited to, funds that are earned by any tribal entities or enterprises or businesses or subsidiaries of any tribal entities or funds earned by any means. The Legislature does not recognize as being legal any expenditure of said Tribal Funds which does not conform to Article VII Section 9 of the Constitution of the Chickasaw Nation, which addresses the budgetary process.

Requested by: Land Development Committee
Sub-Committee on Business Ventures

Presented by: Mr. Gary Carter, Chairman
Land Development Committee